

The Damodar Valley Corporation (Salaries, Allowances and other Conditions of Service of the Chairman, Members and Member-Secretary of the Corporation) Rules, 2013

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[THE-DAMODAR-VALLEY-CORPORATION-SALARIES-ALLOWANCES-AND-OTHER-CONDITIONS-OF-SERVICE-OF-THE-CHAIRMAN-MEMBERS-AND-MEMBER-SECRETARY-OF-THE-CORPORATION-RULES-2013](#) of 2013

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Ministry of Power

G.S.R. 802(E). - In exercise of the powers conferred by sections 5, 8 and sub-sections (1) and (2) of section 59 of the Damodar Valley Corporation Act, 1948, the Central Government hereby makes the following rules regulating the terms and other conditions of service of the Chairman, Members, Member-Secretary of the Damodar Valley Corporation, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Damodar Valley Corporation (salaries, allowances and other conditions of service of the Chairman, Members and Member-Secretary of the Corporation) Rules, 2013.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Damodar Valley Corporation Act, 1948 (14 of 1948

).

(b)

"Chairman" means the Chairman of Corporation.

3.

[Method of recruitment.

[Substituted by Notification No. G.S.R. 106(E), dated 11.2.2013 (w.e.f. 27.12.2013).]

- The posts of Chairman, Member-Secretary, Member (Finance) and Member (Technical) of the Damodar Valley Corporation shall be filled on deputation basis through a Search-cum-Selection Committee duly constituted in consultation with the concerned State Governments. The composition of Search-cum- Selection Committee shall be as under:

(1)

Cabinet Secretary

-

Chairperson;

(2)

Secretary (Power)

-

Member;

(3)

One Expert Member in the field of power sector

to be nominated by the Ministry of Power, Government of India;

(4)

Representative of the State Government of West Bengal (Secretary level or equivalent)

-

Member;

(5)

Representative of the State Government of Jharkhand (Secretary level or equivalent)

-

Member.]

4.

[Salaries.

[Substituted by Notification No. G.S.R. 106(E), dated 11.2.2013 (w.e.f. 27.12.2013).]

- The Chairman shall be paid a salary in the scale of rupees 2,00,000-3,70,000 on Industrial Dearness Allowance, Members and Member-Secretary shall be paid a salary in the scale of rupees 1,80,000 – 3,40,000 on Industrial Dearness Allowance.]

5.

Status.

- The post of Chairman shall be equivalent to the Secretary to the Government of India and the post of Member(s) and Member-Secretary shall be equivalent to the Additional Secretary to the Government of India.

6.

Eligibility.

- (1) Age: - (i) Chairman and Members, -

(a)

Minimum 45 years;

(b)

not more than 58 years for the officers of Damodar Valley Corporation and not more than 57 years for others.

(ii)

Member-Secretary - Maximum 55 years.

(2)

[Qualification and Experience.

[Substituted by Notification No. G.S.R. 106(E), dated 11.2.2013 (w.e.f. 27.12.2013).]

- (i) Chairman - (a) Government Officers holding post in the level-15 (Rs 182200-224100/-) in the pay matrix or officers in equivalent level in the pay matrix, or

(b)

Central Public Sector Executive holding post in the scale of rupees 1,50,000-3,00,000 with Industrial Dearness Allowance or level-15 (Rs 182200-224100/-) in the pay matrix with Central Dearness Allowance with two years of service, or

(c)

Officers of Damodar Valley Corporation holding post in level-15 (Rs 182200-224100/-) in the pay matrix with one year of service.

Note. - The officer having experience in Power Sector, Management and Finance with qualification of Master of Business Administration is desirable.

(ii)

Member. - (a) Government Officers holding post in level-14 (Rs 144200-218200/-) in the pay matrix in the Government of India or officers in equivalent level in the pay matrix; or

(b)

Central Public Sector Executive holding post in the scale of rupees 1,20,000-2,80,000 with Industrial Dearness Allowance or level-14 (Rs 144200-218200/-) in the pay matrix with Central Dearness Allowance with two years of service; or

(c)

Officers of Damodar Valley Corporation holding post in level-14 (Rs 144200-218200/-) in the pay matrix with one year of service.

(d)

Member (Technical). - The applicant shall be a graduate in Engineering preferably in Electrical or Mechanical from a recognised University or Institution having experience of working in irrigation, water supply and power generation.

(e)

Member (Finance). - The applicant shall be a Cost Accountant or Chartered Accountant or Master of Business Administration with specialisation in Finance from a recognised University or Institution having experience of working at a senior level in Corporate Financial Management and Accounts including costs and Budgetary Control, Institutional Finance, Working Capital Management in an organisation of repute.

(iii)

Member–Secretary. - (a) Government officers holding post in level-14 (Rs 144200-218200/-) in the pay matrix in the Government of India or officers in equivalent level in the pay matrix, or

(b)

Central Public Sector Executive holding post in the scale of rupees 1,20,000-2,80,000 with Industrial Dearness Allowance or level-14 (Rs 144200-218200/-) in the pay matrix with Central Dearness Allowance with two years of service, or

(c)

Officers of Damodar Valley Corporation holding post in level-14 (Rs 144200-218200/-) in the pay matrix with one year of service.

(d)

The applicant shall be a post graduate, preferably with specialisation in Human Resources (HR) or Industrial Relation (IR). The applicant should have knowledge of Behavioral Science, Organization Structural, Material Management and knowledge of the Financial Planning and its control as well as general administration. He should also have experience of working at a senior level in a large organization.]

7.

Tenure of office.

(1)

The Chairman and Member(s) shall hold office for a period of five years from the date on which he joins the post or till he attains the age of superannuation.

(2)

When Chairman is unable to discharge his functions owing to illness or other incapacity, the Central Government if so required shall nominate any other Member to act as Chairman and the Member so nominated shall hold office of Chairman until the Chairman resumes office.

(3)

When a vacancy occurs in the office of the Chairman by reason of his death or resignation, the Central Government shall nominate any other Member to act as Chairman and the Member so nominated shall hold office of Chairman under the vacancy is filled by a fresh nomination under sub-section (1) of section 4 of the Act.

8.

Duties.

(1)

Chairman shall be the Chief Executive Officer and Head of the Corporation and accountable to its Board of Directors and Government. Chairman will be primarily responsible for conceptual thinking, policy formulation and issuing directions in relation to its multi-pronged activities. Detailed functions of the Chairman entail long range planning, organizing, coordination and control over the administrative activities of the various departments (including Thermal Power Stations and Dams) to ensure optimal achievement of the objectives of Damodar Valley Corporation. He will be responsible for the efficient functioning of the Corporation for achieving its corporate objectives and performance parameters. He will maintain close liaison with Government of India, Government of Jharkhand, Government of West Bengal and other Public/Private Companies. He will keep close interface with administrative, technical and financial matters with the advice and assistance of other Members.

(2)

Member (Finance) will be a member of Board of Directors and reports to the Chairman. He will be the overall in charge of all financial/commercial/ accounts/audit functions of the organization and responsible for evolving and formulating financial policies. He will be responsible for arranging finance, advising in matters of contracts, Capacity utilization, marketing of electric power, realization of power sold and expansion of markets through formulation and implementation of sound corporate market policies including PPA, commercial strategies and guidelines in line with corporate objectives and goals and promote healthy relationship with customers and other stake holders.

(3)

Member (Technical) will be a member of Board of Directors and report to Chairman. He will be incharge of all technical/operational matters of the Corporation and guide the Corporation to achieve technological/operational excellence. He will be responsible for ensuring proper operation and maintenance of power plants, development of coal blocks and mines and to improve productivity through renovation/modernizations programmes. Responsibilities include

efficient and profitable operation of Power Plant, implementation of new projects, supervision of civil engineering and water resource management including irrigation, flood control, water supply and drainage. Leveraging the technology to achieve competitive advantage to power plants (Thermal, Hydel, Gas, Solar, Wind etc.), Fuel Management and Materials Management will also be his responsibility.

(4)

Member-Secretary will be a member of Corporation and report to Chairman. He shall be overall in charge of Administration such as coordinating and implementing personnel policies, management functions, administrative control etc. He shall be in charge of development including industrial relation policies of the corporation and activities related to international cooperation. Responsibility for land acquisition, liaison, Rehabilitation and Resettlement (R&R), Corporate Social Responsibility (CSR), Raj Bhasha, Social Development, Management Information System (MIS) & Information Technology (IT) and activities connected with Joint Ventures. He will be conducting the Board meetings and will be minuting the proceedings. He will be responsible for conduct of Board proceedings as per the provisions of the Act.

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